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February 26, 2026

By: Gollihare

An Act relating to the Oklahoma Employees Insurance Plan; defining terms; prohibiting certain contracts from being awarded in certain situations; requiring certain scoring to include certain treatment; requiring certain scoring to disfavor certain pharmacy benefits managers; requiring certain certifications; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1329.2 of Title 74, unless there is created a duplication in numbering, reads as follows:

A. As used in this act:

1. "Pharmacy benefits manager" means the same as defined in Section 6960 of Title 36 of the Oklahoma Statutes; and

2. "Protected health information" means the same as defined in Section 6475.3 of Title 36 of the Oklahoma Statutes.

B. No contract between the Oklahoma Employees Insurance Plan and a pharmacy benefits manager (PBM) shall be awarded to a PBM that has settled a lawsuit, been fined, or had judgment against such PBM over Four Million Dollars (\$4,000,000.00) in the previous five (5)

1 years. The scoring of a request for proposal (RFP) shall include
2 favorable treatment for any bidder who has been domiciled in this
3 state for at least one (1) year on the date of the release of the
4 RFP. The scoring of such RFP shall disfavor a PBM that has a
5 corporate structure that includes a:

- 6 1. Health insurance company;
- 7 2. Retail pharmacy chain;
- 8 3. Specialty pharmacy business;
- 9 4. Mail-order pharmacy business; or
- 10 5. Company that manufactures pharmaceuticals.

11 C. The contracted PBM shall certify that such PBM and all
12 contractors who will have access to protected health information are
13 compliant with the Oklahoma Health Information Exchange Act and are
14 SOC 2 Type 2 certified.

15 SECTION 2. This act shall become effective November 1, 2026.

16 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
17 February 26, 2026 - DO PASS
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